

Superior Court (1992) 2 Cal.App.4th 1686, 1690, n. 3; *Hunt v. Hackett* (1973) 36 Cal.App.3d 134, 137-138; *Walker v. State Bar of California* (1989) 49 Cal.3d 1107, 1116.² Denying Taylor appointed counsel will not prevent him from receiving a service that the court otherwise provides.³

Second, it appears, under the circumstances of this case, that appointed counsel would exceed Rule 1.100's policy of providing disabled persons with full and equal access to court services, programs or activities. An "attorney's role" is to serve "as the client's confidential advisor and advocate, a loyal representative whose duty it is to present the client's case in the most favorable possible light." *U.S. v. Arthur Young & Co.* (1984) 465 U.S. 805, 817. Appointed counsel here would take on a role far beyond basic provision of full and equal access to court services and proceedings.

3. CU0002207 Deborah J. Carver vs. Michael W. Horner

On the Court's motion, the hearing regarding Plaintiff/Appellant Carver's amended, proposed settled statement is vacated.

Plaintiff/Appellant elected in her December 23, 2025, notice designating the record on appeal to use a settled statement as the record of the oral proceedings in the superior court. *See* Rules of Court, rule 8.137. Given that Defendant/Respondent Horner did not file a notice under Rule 8.137(b)(4)(A), electing to provide a reporter's transcript, Plaintiff/Appellant was obligated to file a proposed statement in the superior court within 30 days of December 23, 2025, that is, by on or about January 22, 2026. Plaintiff/Appellant then proceeded to file various *untimely* proposed settled statements from February 17, 2026 to February 25, 2026. The operative *untimely* amended proposed statement, filed February 25, 2026, then was *improperly* noticed for hearing on March 20, 2026. *See* Rules of Court, rule 8.137(f)(1). ("No hearing will be held unless ordered...") Judge Timothy Fall issued a tentative ruling in connection with the March 20, 2026, hearing, and continued the hearing to April 3, 2026 because Plaintiff had failed to notice her request for oral argument as required. *See* Local Rule 4.05.03, Rules of Court, rule 3.1308(a)(1). To date, it does not appear that Defendant/Respondent has filed his response as required (within 20 days of appellant's service of the proposed statement). *See* Rules of Court, rule 8.137(e).

Defendant/Respondent is directed to file his response by no later than April 23, 2026. Thereafter, any party may seek to set a review hearing, which will be set in the Court's discretion. *See* Rules of Court, rule 8.137(f)(1).

The parties are reminded of their obligation to be familiar with and abide by all applicable Rules of Procedure, Rules of Court and Local Rules. The Clerk shall serve a copy of the minutes reflecting this order on all parties.

²"[T]he right to counsel [in a civil case] has been recognized to exist only where the litigant may lose his physical liberty if he loses the litigation." *Iraheta v. Superior Court* (1999) 70 Cal.App.4th 1500, 1503, 1508. There is no such risk here.

³ To the Court's knowledge, no published California decision has ever held that appointed counsel is an appropriate or required accommodation.

4. CU0002489

Matthew William Vickers vs. Ethan Oliver Ralph

Defendant Ralph's special motion to strike under Code of Civil Procedure section 425.16 (Anti-SLAPP Motion) is granted in part as described herein. His request for fees and costs is denied.

Oversized Brief

Subject to exceptions which do not apply here, under California Rules of Court, rule 3.1113(d), "no opening ... memorandum may exceed 15 pages." Cal. Rules of Court, rule 3.1113(d). The memorandum submitted in support of the present motion is 24 pages. The Court's records reflect that plaintiff did not file an appropriate application with the Court requesting permission to file a longer memorandum. See Cal. Rules of Court, rule 3.1113(e). That stated, the Court, in the exercise of its discretion, will consider the moving papers in their entirety. Defendant is admonished to comply with the California Code of Civil Procedure and the California Rules of Court.

Request for Judicial Notice

At bar, Defendant seeks judicial notice of a complaint filed in CU0001860, Ralph Decl. ¶ 48 Exhibit 10, but fails to make such request in a separate document as required. See Cal. Rules of Court, Rule 3.1113(l) ("Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)."). Plaintiff does not object. The Court grants the request. Judicial notice will be limited to the fact the document was filed, but not of the truth of its contents. See *Espinoza v. Calva* (2008) 169 Cal.App.4th 1393, 1396. Defendant is again admonished to comply with all applicable procedural law.

Legal Standard for Anti-SLAPP Motion

"Code of Civil Procedure section 425.16 sets out a procedure for striking complaints in harassing lawsuits that are commonly known as SLAPP suits ... which are brought to challenge the exercise of constitutionally protected free speech rights." *Kibler v. Northern Inyo County Local Hospital Dist.* (2006) 39 Cal.4th 192, 196, 46 Cal.Rptr.3d 41, 138 P.3d 193. A cause of action arising from a person's act in furtherance of the "right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability" that the claim will prevail. Code Civ. Proc., § 425.16, subd. (b)(1). "The anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity. Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a